



Notification Waiver Determination

Australian Venue Co – leasehold and assets of Brabham Tavern, WA

Acquisition	AVC Operations Pty Ltd (AVC), a subsidiary of Australian Venue Co. Holdings Limited, applied for a notification waiver in respect of its proposed acquisition of the leasehold and assets of the new licensed tavern intending to trade as Brabham Tavern, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 June 2026

Parties to the Acquisition	The acquirer, AVC, operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as some bars, clubs and licensed restaurants. AVC's venues are individually branded and are mostly located in inner-city and metro areas, offering a range of products and services including food, alcoholic and non-alcoholic beverages, function rooms, live entertainment and gaming facilities. The target, Brabham Tavern is a newly built turnkey pub / contemporary licensed venue located at 45 Palfrey St, Brabham, WA. It is still under development and has not yet begun trading. The parties both supply dining and on-premises liquor in the Perth metropolitan area in Western Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is no horizontal overlap between AVC and the Brabham Tavern in the supply of dining and on-premises liquor in the local area surrounding the Brabham Tavern - there are alternative providers of dining and liquor for on-site consumption in the local area surrounding the Brabham Tavern and in the broader Perth metropolitan area. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply.

	While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act